

SOLVED PRACTICE WORKBOOK

Emergency Provisions - Solved Practice Workbook

32 original MCQs, routed PYQs and six marks-scaled Mains models

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

Solved Practice Workbook - Contents

Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

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Emergency Provisions - Solved Practice Workbook

Practice control: 32 original MCQs use the exact sequence ABCDABCDABCDABCDABCDABCDABCDABCD. Historical objective letters are printed only where a final official/local-official key is held.

BASIC MCQS / REMEDIATION

EXACTLY 32 ORIGINAL MCQS - STRICT ABCD ROTATION

Q1. Article 352 threshold

Which formulation most accurately states the present constitutional threshold for a National Emergency?

A. A grave emergency whereby the security of India or any part is threatened by war, external aggression or armed rebellion B. Any serious disturbance affecting a State C. Breakdown of public order in a Union Territory D. Financial instability affecting national credit

Answer: A.

Option explanations

- **A:** This option reproduces the three grounds and the indispensable grave-emergency and security-of-India-or-part threshold.
- **B:** A serious disturbance affecting a State may remain an ordinary public-order problem and does not by itself satisfy Article 352.
- **C:** Public order difficulty in a Union Territory is not one of Article 352's three named grounds.
- **D:** Threat to financial stability or credit belongs to Article 360 rather than the national-security proclamation.

Examiner trap: Do not identify Article 352 from a ground word while ignoring the grave-security threshold.

Q2. Imminent danger

A proclamation under Article 352 may be issued before the actual occurrence of the named event when:

A. a Governor requests preventive action B. the President is satisfied that imminent danger of war, external aggression or armed rebellion exists C. Parliament passes a simple-majority precautionary resolution D. the Supreme Court certifies a likely threat

Answer: B.

Option explanations

- **A:** A Governor has no constitutional veto or initiating certificate in Article 352's imminent-danger explanation.
- **B:** The Explanation expressly permits advance proclamation on presidential satisfaction of imminent danger of one of the three named grounds.
- **C:** Parliamentary approval follows proclamation and uses a special majority, not a preventive simple-majority trigger.
- **D:** Judicial review checks legality later; the Court does not provide the prior threat certification imagined here.

Examiner trap: Imminent danger advances timing; it does not add 'terrorism' or 'internal disturbance' as a fourth ground.

Q3. Territorial floor

Which statement about the territorial operation of Article 352 is constitutionally correct?

A. It must cover at least one complete State B. It can operate only throughout India C. It may cover the whole of India or the part specified, with no State-sized minimum stated in the text D. A partial proclamation requires consent of every affected State

Answer: C.

Option explanations

- **A:** Article 352 does not prescribe a complete-State floor; a specified part is the textual unit.

- **B:** The 42nd Amendment expressly enabled a proclamation confined to part of Indian territory.
- **C:** This reflects the current wording and avoids inventing a minimum territorial size.
- **D:** State consent is not listed as a condition for specifying the territorial operation of a National Emergency.

Examiner trap: Never translate 'such part of the territory' into an unsupported rule that the smallest unit is one State.

Q4. Localised external attack

A cross-border attack concentrated in one State should be analysed first by asking:

A. whether Article 356 automatically applies because only one State is affected B. whether terrorism is always external aggression C. whether the Governor can declare National Emergency D. whether Article 352's grave-security and named-ground threshold is met, while recognising that ordinary security law may suffice

Answer: D.

Option explanations

- **A:** Article 356 concerns constitutional machinery failure, not the mere geography of an attack.
- **B:** Terrorism and external aggression can overlap factually but are not automatic constitutional synonyms.
- **C:** Only the President issues the proclamation after the written Union Cabinet decision; the Governor has no such power.
- **D:** This approach separates legal category, satisfaction threshold and the practical availability of ordinary law.

Examiner trap: The 2008 Mumbai attacks did not produce either an Article 352 or automatic Article 356 proclamation.

Q5. Written Cabinet advice

For issuing or varying an Article 352 proclamation, the Constitution requires:

A. the Union Cabinet's decision communicated to the President in writing B. oral advice from the Prime Minister followed by later ratification C. a resolution of the Council of Ministers including every Minister of State D. prior approval by the National Security Council

Answer: A.

Option explanations

- **A:** Article 352(3) imposes this written collective-decision safeguard and defines Cabinet for the clause.
- **B:** The post-1975 reform was designed precisely to prevent informal or solely prime-ministerial initiation.
- **C:** The clause refers to the Prime Minister and Cabinet-rank ministers, not the entire ministry as described.
- **D:** The National Security Council may advise government politically but is not the constitutional precondition.

Examiner trap: Distinguish the constitutionally defined Union Cabinet from the broader Council of Ministers.

Q6. Approval majority

A resolution approving or continuing a National Emergency requires:

A. two-thirds of total membership B. a majority of total membership and not less than two-thirds of members present and voting C. a simple majority in each House D. ratification by half the States

Answer: B.

Option explanations

- **A:** Two-thirds of total membership is not the formula; the Constitution uses two simultaneous but different limbs.
- **B:** Article 352(6) states both the total-membership majority and the present-and-voting two-thirds requirement.
- **C:** Simple majority governs Articles 356 and 360 approvals, not Article 352.
- **D:** Federal ratification is an Article 368 procedure and has no place in emergency approval.

Examiner trap: Write both limbs of the special majority; never compress it to 'two-thirds majority'.

Q7. Initial approval and dissolution

If Lok Sabha is dissolved during Article 352's one-month approval period and Rajya Sabha approves, the proclamation:

A. immediately becomes permanent B. automatically ends after one month regardless of reconstitution C. can continue until thirty days after the reconstituted Lok Sabha first sits, unless it approves sooner D. must be approved by State legislatures

Answer: C.

Option explanations

- **A:** No emergency proclamation can become permanent through Rajya Sabha approval alone.
- **B:** The dissolution proviso temporarily preserves operation rather than forcing mechanical expiry at one month.
- **C:** This is the exact constitutional bridge protecting the new Lok Sabha's opportunity to decide.
- **D:** State legislatures have no approval role under Article 352.

Examiner trap: The thirty days run from the new Lok Sabha's first sitting, not from the election result or constitution of the House.

Q8. Lok Sabha disapproval

Which Article 352 statement is correct?

A. Rajya Sabha alone can force revocation B. One-tenth of either House can demand a joint sitting C. Disapproval requires the same special majority as approval D. Lok Sabha disapproval by simple majority obliges the President to revoke, and one-tenth of its total members may seek a special sitting

Answer: D.

Option explanations

- **A:** The forced-revocation resolution is constitutionally assigned to the House of the People.
- **B:** Article 352 creates no joint sitting and the one-tenth notice belongs only to Lok Sabha.
- **C:** The special majority governs approval and continuance; disapproval uses ordinary voting logic.
- **D:** This combines Article 352(7)'s mandatory revocation with clause (8)'s fourteen-day special-sitting safeguard.

Examiner trap: Do not transfer Article 352's opposition-triggered special sitting to President's Rule.

Q9. National Emergency duration

Once properly approved, a National Emergency:

A. continues for six months and may be renewed repeatedly for further six-month periods by the same special majority B. continues indefinitely without another parliamentary vote C. has an absolute three-year maximum D. must be renewed annually by simple majority

Answer: A.

Option explanations

- **A:** Article 352(5) provides the six-month cycle and permits repeated special-majority continuance.
- **B:** Indefinite possible duration is conditional on recurrent approvals, not initial approval alone.
- **C:** The three-year ceiling belongs to Article 356.
- **D:** Neither the period nor the majority described here matches current Article 352.

Examiner trap: Say 'no fixed maximum with valid six-month renewals', not 'automatically indefinite'.

Q10. Article 353 extra-area effect

When a National Emergency operates only in part of India, Article 353 effects may extend to another State:

A. without any security connection B. if and in so far as security is threatened by activities in or related to the proclaimed area C. only after that State's Assembly consents D. only through Article 356

Answer: B.

Option explanations

- **A:** The 42nd Amendment proviso is relational and does not create unbounded spillover.
- **B:** The phrase 'if and in so far as' ties extra-area directions and law-making to a specified security connection.
- **C:** No affected-State consent requirement appears in Article 353's proviso.

- **D:** Article 353 itself supplies this connected-territory effect; constitutional machinery failure need not be alleged.

Examiner trap: A partial proclamation does not mean every Article 353 effect is automatically confined to the drawn boundary or automatically nationwide.

Q11. Article 250 tail

A parliamentary State List law made because Article 352 is in operation ordinarily loses effect, to the extent of the competence problem:

A. on the day of revocation B. after one year C. six months after the Emergency ceases D. only when every State repeals it

Answer: C.

Option explanations

- **A:** The Constitution supplies a post-emergency transition rather than same-day disappearance.
- **B:** One year is the maximum single legislative-term extension, not the Article 250 law tail.
- **C:** The six-month tail permits transition while preserving things previously done or omitted.
- **D:** The law's emergency-based competence does not depend on repeal by all State legislatures.

Examiner trap: Separate the six-month Article 250 tail from the six-month ceiling after cessation for extended legislative terms.

Q12. Article 354

An Article 354 revenue-distribution order:

A. may permanently amend Articles 268-279 B. needs ratification by half the States C. can continue for five years after Emergency D. cannot extend beyond the financial year in which the Emergency ceases and must be laid before Parliament

Answer: D.

Option explanations

- **A:** Article 354 authorises temporary application changes, not permanent textual amendment.
- **B:** The order is presidential and parliamentary-laying based; Article 368 State ratification is irrelevant.
- **C:** The Constitution imposes a much shorter financial-year outer boundary.
- **D:** This option states both the temporal limit and accountability requirement often omitted in answers.

Examiner trap: Do not describe Article 354 as suspension of all Finance Commission or tax-distribution provisions.

Q13. Article 358 trigger

Article 358 currently operates automatically only when Article 352 is based on:

A. war or external aggression B. armed rebellion C. failure of State machinery D. financial instability

Answer: A.

Option explanations

- **A:** The 44th Amendment confined Article 358 to the two external grounds.
- **B:** An armed-rebellion Emergency can support an Article 359 order but does not activate Article 358.
- **C:** President's Rule has no automatic Article 19 consequence.
- **D:** Article 360 contains no Article 358 mechanism.

Examiner trap: External Emergency is shorthand for war/external aggression; do not include armed rebellion.

Q14. Article 358 recital

Post-44th Article 358 protection is unavailable where:

A. the law relates to the proclamation B. the law lacks the required proclamation recital or the executive action is not under a reciting law C. Parliament legislates on the State List D. the proclamation covers only part of India

Answer: B.

Option explanations

- **A:** A genuine emergency-related law with the recital satisfies the textual nexus gateway, subject to the remaining clause.
- **B:** Article 358(2) expressly withholds the shield in these two situations.
- **C:** State List subject matter can fall within emergency competence and does not itself defeat Article 358.
- **D:** Partial territorial operation invokes scope provisos rather than eliminating Article 358 altogether.

Examiner trap: The recital is not decorative drafting; it is a constitutional condition for the shield.

Q15. Article 359 legal effect

An order under Article 359 principally:

A. erases the specified right from Part III B. automatically suspends every pending case C. suspends the right to move courts for enforcement of specified rights and related pending proceedings as the order states D. abolishes High Court writ jurisdiction permanently

Answer: C.

Option explanations

- **A:** The right remains in Part III; the order addresses enforcement access.
- **B:** Only proceedings for enforcement of rights mentioned in the order are affected for its period.
- **C:** This formulation captures both the enforcement route and the bounded effect on pending proceedings.
- **D:** Article 359 neither permanently amends Article 226 nor abolishes High Courts.

Examiner trap: Use 'enforcement suspended as specified', never the loose claim that rights themselves disappear.

Q16. Articles 20 and 21

Which rights may not be included in an Article 359 suspension order?

A. Articles 14 and 15 B. Articles 19 and 22 C. Articles 25 and 26 D. Articles 20 and 21

Answer: D.

Option explanations

- **A:** Equality rights may be named in an order if constitutional conditions are met.
- **B:** Article 19 has its separate Article 358 relationship and Article 22 is not textually excluded from Article 359.
- **C:** Religious-freedom rights are not within the express 20-21 exclusion.
- **D:** The 44th Amendment created this permanent penal-protection and life-liberty firewall.

Examiner trap: Article 21's protection does not mean every other Fundamental Right is automatically enforceable during every order.

Q17. Survival effect

After the relevant Article 358 protection ends, a law inconsistent only because Article 19 ordinarily restricted competence:

A. ceases prospectively to the extent of inconsistency, while past things done or omitted remain addressed by the saving B. is void ab initio for all purposes C. remains permanently immune D. requires a Supreme Court declaration before Article 19 applies again

Answer: A.

Option explanations

- **A:** This reflects the express prospective cessation and past-act saving structure.
- **B:** The constitutional text avoids retrospective erasure of every emergency-period act.
- **C:** Emergency protection is temporary rather than permanent immunity.
- **D:** The constitutional consequence follows from cessation; no special declaratory prerequisite is stated.

Examiner trap: Do not confuse temporary constitutional immunity with permanent validation of the law.

Q18. Minerva Mills review

Which statement best captures *Minerva Mills* on Article 352 review?

- A. Courts may freely replace the Cabinet's threat assessment B. Mala fide or wholly extraneous and irrelevant grounds may be reviewed, but courts should not reweigh sufficiency as an appellate security authority C. Parliamentary approval eliminates review D. Every political question is non-justiciable

Answer: B.

Option explanations

- **A:** The judgment expressly warned against entering the political thicket through merits substitution.
- **B:** This states both the real review grounds and the judicial-restraint qualification.
- **C:** Constitutional conditions remain reviewable notwithstanding legislative approval.
- **D:** Political colour does not remove a legal question about constitutional limits from judicial scrutiny.

Examiner trap: Cite *Minerva Mills* narrowly; it did not create a general judicial power to decide national-security policy.

Q19. Article 355

Article 355:

- A. itself dismisses a State ministry B. uses 'armed rebellion' instead of 'internal disturbance' C. imposes a Union duty to protect States against external aggression and internal disturbance and ensure constitutional government D. requires special-majority approval

Answer: C.

Option explanations

- **A:** Article 355 states duties and does not itself issue an Article 356 proclamation.
- **B:** The phrase internal disturbance remains in Article 355 despite its removal from Article 352.
- **C:** This option reproduces both protective and constitutional-government limbs.
- **D:** No House-resolution approval process is contained in Article 355.

Examiner trap: The same words can have different constitutional roles: internal disturbance remains in 355 but not 352.

Q20. Article 365

Failure by a State to comply with constitutional Union directions under Article 365:

- A. automatically dissolves the Assembly B. automatically proves armed rebellion C. can only be considered by the Supreme Court D. permits the President to hold that Article 356 conditions have arisen, but does not remove the need for constitutional assessment

Answer: D.

Option explanations

- **A:** Assembly status follows a valid Article 356 process and is never the automatic Article 365 consequence.
- **B:** Direction non-compliance and armed rebellion are conceptually and textually different.
- **C:** The President initially assesses the constitutional consequence; later judicial review remains possible.
- **D:** This respects Article 365's enabling wording and the separate Article 356 threshold.

Examiner trap: Treat Article 365 as possible material, not a self-executing proclamation.

Q21. Article 356 trigger

President's Rule may constitutionally rest on:

- A. a Governor's report or other relevant material showing State government cannot be carried on according to the Constitution B. mere policy disagreement with the Union C. any serious crime within the State D. a demand by the largest opposition party

Answer: A.

Option explanations

- **A:** Article 356 expressly says 'on receipt of a report from the Governor ... or otherwise' and specifies the constitutional-failure test.
- **B:** Federal political disagreement is not inability to carry on constitutional government.
- **C:** Criminal violence may require policing or Article 355 assistance without displacing elected government.
- **D:** Party demand is not constitutional proof of machinery failure.

Examiner trap: Focus on constitutional impossibility supported by material, not an undesirable administration.

Q22. Article 356 approval

A non-revoking Article 356 proclamation ordinarily needs approval:

A. within one month by special majority B. within two months by simple majority in both Houses C. within six months by joint sitting D. within fourteen days by Lok Sabha alone

Answer: B.

Option explanations

- **A:** This is the Article 352 rule and majority, not Article 356.
- **B:** The two-month/simple-majority combination is the correct President's Rule rule.
- **C:** No joint sitting substitutes for separate approval by both Houses.
- **D:** Fourteen days belongs to the Article 352 special-sitting notice safeguard.

Examiner trap: Pair each emergency with its own window and majority before solving options.

Q23. Beyond one year

Continuation of President's Rule beyond one year ordinarily requires:

A. only a Governor recommendation B. only an Election Commission certificate C. both a qualifying National Emergency in force and ECI certification of election difficulty D. a constitutional amendment

Answer: C.

Option explanations

- **A:** The Governor's position cannot replace the two express Article 356(5) conditions.
- **B:** Certification is necessary but not sufficient; the National Emergency condition must also exist.
- **C:** Both limbs are cumulative and apply at the time the continuance resolution is passed.
- **D:** The Constitution already supplies the extension mechanism; no amendment is needed for a valid case.

Examiner trap: Do not apply the beyond-one-year conditions to the first six-month approval.

Q24. Article 356 maximum

The ordinary present constitutional maximum for one Article 356 proclamation is:

A. one year B. indefinite C. five years D. three years

Answer: D.

Option explanations

- **A:** One year is the point after which extra conditions arise, not the overall maximum.
- **B:** Indefinite continuation belongs to neither ordinary Article 356 nor its renewal structure.
- **C:** Historic Punjab-specific extensions do not state the general current rule.
- **D:** Article 356(4) fixes three years as the ordinary ceiling.

Examiner trap: Avoid converting a historical Punjab exception into the general President's Rule maximum.

Q25. Article 357 law survival

A State law made through Article 357 emergency legislative authority after the proclamation ends:

A. continues until altered, repealed or amended by a competent legislature or authority B. automatically expires after six months C. becomes a constitutional amendment D. must be reenacted by every district

Answer: A.

Option explanations

- **A:** Article 357(2) expressly preserves such law until competent change.
- **B:** The six-month tail applies to Article 250 competence, not Article 357 law survival.
- **C:** Exercise of State legislative power does not transform ordinary law into constitutional text.
- **D:** District reenactment has no constitutional role in preserving a State law.

Examiner trap: Do not import Article 250's post-emergency tail into Article 357.

Q26. High Court limit

During President's Rule:

A. the President may suspend Article 226 B. the President cannot assume High Court powers or suspend constitutional provisions relating to High Courts C. the Chief Justice becomes responsible to Parliament D. all Fundamental Rights automatically cease

Answer: B.

Option explanations

- **A:** Article 356's proviso protects High Court powers rather than authorising their suspension.
- **B:** This is the express judicial boundary on presidential assumption.
- **C:** No such alteration of judicial office or responsibility is created.
- **D:** Article 356 contains no automatic Part III suspension mechanism.

Examiner trap: The High Court proviso is textual, not merely a convention from *Bommai*.

Q27. Bommai floor test

Where legislative majority is disputed, *S.R. Bommai* ordinarily requires determination:

A. through a Governor's interview B. through party affidavits submitted to the Union C. on the floor of the State Assembly D. by the Election Commission

Answer: C.

Option explanations

- **A:** A private constitutional-office assessment lacks the democratic visibility of the House vote.
- **B:** Affidavits can be evidence but are not the ordinary constitutional forum for proving confidence.
- **C:** The floor test protects representative majority and limits subjective reports.
- **D:** The Election Commission administers elections; it does not decide an incumbent ministry's Assembly confidence.

Examiner trap: The floor-test rule answers majority disputes, not every distinct form of constitutional breakdown.

Q28. Bommai remedy

If an Article 356 proclamation is invalidated, *Bommai* supports the proposition that:

A. only damages are available B. parliamentary approval bars relief C. the case becomes moot after dismissal D. the court may restore the dismissed government and Assembly

Answer: D.

Option explanations

- **A:** Constitutional restoration, not merely monetary compensation, addresses the federal-democratic injury.
- **B:** Approval does not erase judicial review or remedial power.
- **C:** Treating dismissal as irreversible would reward an unconstitutional fait accompli.
- **D:** Restoration makes review effective and deters premature dissolution.

Examiner trap: Contrast *Bommai*'s restoration power with *Rameshwar Prasad*, where elections had advanced and restoration was not ordered.

Q29. Financial trigger

Article 360 may be proclaimed when:

A. the financial stability or credit of India or any part of its territory is threatened B. a State exceeds a preferred deficit ratio C. the Union imposes Article 293 borrowing conditions D. the Finance Commission recommends reduced grants

Answer: A.

Option explanations

- **A:** This is the constitutional trigger and applies to India or any part.
- **B:** No numerical deficit rule in Article 360 mechanically activates the proclamation.
- **C:** Article 293 is an ordinary borrowing-control provision and can operate without Financial Emergency.
- **D:** Finance Commission advice does not itself establish the Article 360 threshold.

Examiner trap: A fiscal problem is not a Financial Emergency until the constitutional proclamation threshold is satisfied.

Q30. Financial duration

After proper parliamentary approval, a Financial Emergency:

A. must be renewed every six months B. continues without a periodic renewal requirement until revoked or varied C. ends automatically after one year D. requires State ratification every budget session

Answer: B.

Option explanations

- **A:** Six-month renewal belongs to Articles 352 and 356, though with different majorities.
- **B:** Article 360 contains no renewal cycle or fixed maximum after initial approval.
- **C:** The Constitution provides no one-year automatic expiry.
- **D:** State legislatures do not ratify Article 360 continuance.

Examiner trap: Use 'indefinite until revocation after approval', not 'permanent'.

Q31. Financial Bill reservation

An Article 360 direction may require reservation for presidential consideration of:

A. all ordinary private members' Bills B. only Appropriation Bills of Parliament C. State Money Bills and other State Bills to which Article 207 applies D. Supreme Court rules

Answer: C.

Option explanations

- **A:** Article 360 targets specified State financial legislation, not every private member's Bill.
- **B:** The reservation direction concerns State legislative Bills rather than Union Appropriation Bills.
- **C:** This follows Article 360(4)(a)(ii)'s exact cross-reference to Article 207.
- **D:** Judicial rules are unrelated to the financial-Bill reservation mechanism.

Examiner trap: Say 'Money Bills or other Bills to which Article 207 applies', not every State Bill.

Q32. Financial status and salaries

Which statement is accurate as of 7 September 2026?

A. Article 360 was proclaimed in 1991 B. Judges' salaries can never be affected under Article 360 C. Article 360 is automatically active during a balance-of-payments crisis D. No Financial Emergency has been proclaimed; if validly in force, directions may include salary reductions for Union personnel including Supreme Court and High Court judges

Answer: D.

Option explanations

- **A:** The 1991 crisis was managed without an Article 360 proclamation.
- **B:** Article 360 expressly includes constitutional-court judges within possible Union salary directions.

- **C:** Economic facts alone do not substitute for presidential proclamation and parliamentary approval.
- **D:** This states both the historical status and the exceptional salary consequence.

Examiner trap: Never turn the common phrase 'closest in 1991' into a claim of proclamation or near-proclamation.

PYQS AND ANSWER PRACTICE

ROUTED VERIFIED PYQS

PYQ 1 - UPSC GS-II 2018, Q3 - direct owner

Question: Under what circumstances can the Financial Emergency be proclaimed by the President of India? What consequences follow when such a declaration remains in force?

10 marks | 150 words

Demand decoding: State the Article 360 threshold, then procedure, effects and a qualified never-used conclusion.

Model solution

Claim: Article 360 is a last-resort response when the President is satisfied that the financial stability or credit of India or any part is threatened.

Evidence: Both Houses must approve within two months by simple majority. Once approved, it continues without periodic renewal until revoked. Union directions may require States to observe canons of financial propriety, reduce salaries of persons serving a State, and reserve State Money Bills or other Article 207 Bills. The President may also reduce Union salaries, including those of Supreme Court and High Court judges.

Analysis: These powers sharply centralise fiscal administration without dismissing State institutions or automatically suspending Fundamental Rights.

Qualification: India has never proclaimed Article 360; ordinary fiscal and borrowing tools have managed crises. Its severity makes necessity, proportionality and parliamentary scrutiny essential.

PYQ 2 - UPSC Prelims 2018, Q53 - direct owner

Question: If the President of India exercises his power as provided under Article 356 of the Constitution in respect of a particular State, then

A. the Assembly of the State is automatically dissolved. B. the powers of the Legislature of that State shall be exercisable by or under the authority of the Parliament. C. Article 19 is suspended in that State. D. the President can make laws relating to that State.

Answer withheld pending official UPSC key.

Solution discipline: Article 356 permits the proclamation to declare State legislative powers exercisable by or under Parliament. The Assembly is not automatically dissolved; Article 19 is not automatically suspended; and presidential State law-making depends on the Article 357 parliamentary-conferral channel.

PYQ 3 - UPSC GS-II 2020, Q11 - supporting / cross-owned

Question: The Indian Constitution exhibits centralising tendencies to maintain unity and integrity of the nation. Elucidate in the perspective of the Epidemic Diseases Act, 1897, the Disaster Management Act, 2005 and the recently passed Farm Acts.

15 marks | 250 words

Demand decoding: Explain centralising capacity through the named ordinary statutes while expressly distinguishing them from formal Emergency powers.

Model solution

Claim: India's holding-together federation provides Union coordination capacity, but centralisation must rest on the correct legislative source rather than borrowed emergency logic.

Evidence: During COVID-19, the Disaster Management Act enabled national directions while the Epidemic Diseases Act operated substantially through State authorities. The 2020 Farm Acts relied on Concurrent List Entry 33 concerning trade in foodstuffs but affected agriculture and markets associated with State fields; their 2021 repeal reflected political federalism.

Analysis: Uniform crisis coordination can reduce fragmentation, yet implementation burdens and democratic accountability remain distributed. Articles 352, 356 and 360 demonstrate the Constitution's exceptional centralising design, but none was the direct legal basis of the named statutes.

Qualification: Union action must therefore satisfy legislative competence, necessity and consultation. *S.R. Bommai*, judicial review and State electoral power remain counterweights. Unity is best protected when coordination does not erase federal trust.

PYQ 4 - UPSC Prelims 2023, Q77 - supporting route

Question: Consider the following statements:

1. According to the Constitution of India, the Central Government has a duty to protect States from internal disturbances.
2. The Constitution of India exempts the States from providing legal counsel to a person being held for preventive detention.
3. According to the Prevention of Terrorism Act, 2002, confession of the accused before the police cannot be used as evidence.

How many of the above statements are correct?

A. Only one B. Only two C. All three D. None

Answer withheld pending official UPSC key.

Solution discipline: Article 355 supplies the Union duty. Article 22(3) excludes preventive-detention cases from Article 22(1)-(2), including the counsel safeguard. POTA 2002 contained a special admissibility rule for specified police confessions and was repealed in 2004. This PYQ is supporting because preventive-detention and POTA detail is primarily owned by Fundamental Rights/Internal Security.

PYQ 5 - UPSC GS-II 2023, Q13 - direct owner

Question: Account for the legal and political factors responsible for the reduced frequency of using Article 356 by the Union Governments since mid 1990s.

15 marks | 250 words

Demand decoding: 'Account for' requires causal explanation under legal, political and institutional heads, not a list of *Bommai* propositions alone.

Model solution

Claim: Article 356 became less frequent because courts changed the legal cost of dismissal and federalised politics changed its survival cost.

Named evidence: *S.R. Bommai* made proclamations reviewable, required relevant material, preferred floor tests, delayed dissolution until parliamentary approval and enabled restoration. *Rameshwar Prasad* later invalidated the Bihar dissolution. Sarkaria and Punchhi promoted warning, speaking Governor reports and last-resort use.

Analysis: Coalition Union governments and powerful regional parties made dismissal of State governments costly in parliamentary alliances and elections. Media and civil-society scrutiny increased reputational risk. These changes jointly discouraged the earlier pattern of partisan proclamations.

Qualification: The text still permits satisfaction on a Governor's report 'or otherwise', and Governor/floor-test disputes continue. The decline therefore reflects disciplined incentives, not repeal or guaranteed compliance.

PYQ 6 - UPSC Prelims 2024, Q74 - supporting route; final official local key held

Question: Which of the following statements are correct about the Constitution of India?

1. Powers of the Municipalities are given in Part IX A of the Constitution.
2. Emergency provisions are given in Part XVIII of the Constitution.
3. Provisions related to the amendment of the Constitution are given in Part XX of the Constitution.

Select the answer using the code given below:

A. 1 and 2 only B. 2 and 3 only C. 1 only D. 1, 2 and 3

Answer: D. Official UPSC Set-A key held locally.

Solution discipline: Part IX-A concerns Municipalities, Part XVIII Emergency Provisions and Part XX constitutional amendment.

SIX ORIGINAL MAINS QUESTIONS WITH MODEL ANSWERS

Original Q1 - 10 marks | 150 words

Question: An external attack affecting only one State does not mechanically trigger President's Rule. Explain the correct constitutional analysis.

Model answer (128 words)

Claim: Geography does not determine the emergency category. Article 356 applies only when State government cannot be carried on according to the Constitution.

Named evidence: Article 352 instead addresses a grave emergency whereby the security of India or any part is threatened by war, external aggression or armed rebellion. It permits a proclamation for a specified part and states no State-sized minimum.

Analysis: A localised cross-border attack therefore requires assessment of Article 352's ground and security threshold. Article 355 may support Union protection, while criminal, policing and counter-terrorism law may remain sufficient. Terrorism is not automatically constitutional 'external aggression'.

Qualification: The 2008 Mumbai attacks produced no National Emergency and no automatic Article 356 proclamation. Only independent proof that Maharashtra's constitutional government could not function would engage Article 356.

Original Q2 - 10 marks | 150 words

Question: Differentiate Articles 358 and 359 after the 44th Amendment.

Model answer (140 words)

Claim: Articles 358 and 359 create different, bounded rights consequences rather than a blanket suspension of Part III.

Named evidence: Article 358 operates automatically, concerns Article 19 alone and applies only during war or external-aggression Emergency. Its shield requires an emergency-related recital and covers executive action under such a law. Article 359 needs a presidential order and suspends the right to move courts for enforcement of specified Part III rights and relevant pending proceedings.

Analysis: Article 358 changes Article 19's constraint for a narrow trigger; Article 359 restricts the enforcement route named in the order. Article 359(1A)-(1B) also uses recital and nexus controls.

Qualification: Articles 20 and 21 can never be included after the 44th Amendment. On cessation, protected laws lose prospective immunity to the extent of ordinary incompetency, while past acts remain governed by the saving clauses.

Original Q3 - 15 marks | 250 words

Question: Examine how the 44th Amendment constitutionalised lessons from the 1975-77 Emergency.

Model answer (193 words)

Claim: The 44th Amendment converted the vulnerabilities exposed in 1975 into specific textual safeguards without abolishing emergency power.

Named evidence: The 1975 proclamation used the broad ground 'internal disturbance'. The amendment replaced it with 'armed rebellion', required the Union Cabinet decision in writing, shortened approval to one month and imposed a majority of total membership plus two-thirds present and voting. Six-month renewals and the Lok Sabha disapproval route ended passive continuation. One-tenth of Lok Sabha members can obtain a special sitting within fourteen days.

Rights safeguards were equally direct. Article 358 was confined to war and external aggression and to emergency-related reciting laws and action under them. Article 359 can no longer block enforcement of Articles 20 and 21. The amendment also removed the 38th Amendment's finality clauses, restoring judicial review.

Analysis: Each repair addresses a distinct 1975 failure: vague trigger, personalised initiation, weak approval, restricted liberty and attempted executive finality. *Puttaswamy* later added judicial repudiation of *ADM Jabalpur*.

Qualification: A large parliamentary majority, controlled information, preventive detention and institutional deference can still endanger liberty. The amendment substantially closes the known legal pathways, but Parliament, courts, opposition and media must activate its safeguards.

Original Q4 - 15 marks | 250 words

Question: Assess the constitutional significance of *S.R. Bommai* beyond the decline in frequency of Article 356.

Model answer (182 words)

Claim: *S.R. Bommai* did more than reduce proclamations; it joined representative majority, federalism, secularism and effective remedies within Article 356 doctrine.

Named evidence: The Court made presidential satisfaction judicially reviewable and required relevant material free from mala fides. When majority is disputed, it ordinarily belongs on the Assembly floor. The Assembly should not be irreversibly dissolved before parliamentary approval, and an invalid proclamation may lead to restoration of the ministry and House. Political change at the Union cannot itself justify dismissal of opposition States.

The judgment also treated federalism and secularism as Basic Structure features. Genuine anti-secular State conduct can therefore have Article 356 relevance, but the provision cannot become a partisan weapon.

Analysis: Floor testing protects democratic proof; delayed dissolution prevents a fait accompli; restoration makes review practical rather than declaratory; and Basic Structure reasoning supplies substantive constitutional boundaries. *Rameshwar Prasad* later demonstrated scrutiny of Governor-based predictive material.

Qualification: *Bommai* neither abolishes Article 356 nor requires a floor test for every non-majority form of breakdown. Courts review legality and evidence, while a proved constitutional failure remains remediable under the

text.

Original Q5 - 20 marks | 250 words

Question: Emergency provisions make India temporarily unitary, but not constitutionally non-federal. Critically evaluate.

Model answer (201 words)

Claim: Part XVIII creates functional Union dominance in crisis, but the Constitution, States and judicial limits continue.

Named evidence: Under Article 352, Article 353 expands Union directions and parliamentary law-making; Article 250 enables State List legislation; Article 354 can modify revenue distribution. Yet State governments and legislatures continue. Articles 358-359 create only specified rights effects, with Articles 20-21 protected.

Article 356 produces sharper State-specific displacement: the ministry may be dismissed and legislative power becomes exercisable by or under Parliament. Article 357 channels delegation and preserves resulting laws, while the High Court remains beyond presidential assumption. *S.R. Bommai* adds review, floor testing, delayed dissolution and restoration.

Article 360 centralises fiscal directions, salary reduction and reservation of State financial Bills, but does not itself dissolve State institutions.

Analysis: These provisions temporarily alter the federal distribution so the Union can meet security, constitutional or financial collapse. Parliamentary approval, duration controls and judicial review preserve constitutional continuity.

Qualification: Article 352 and Article 360 can continue without fixed maximum if their distinct requirements are met; political majorities may still misuse crisis narratives. India becomes Union-weighted in operation, not legally unitary in identity. Emergency legitimacy therefore depends on necessity, proportionality and restoration of ordinary federal democracy.

Original Q6 - 20 marks | 250 words

Question: Why has India never proclaimed a Financial Emergency? Does non-use make Article 360 redundant?

Model answer (197 words)

Claim: Article 360's non-use reflects its drastic signalling and distributive consequences, together with effective ordinary fiscal tools; it does not necessarily prove redundancy.

Named evidence: Once approved within two months by simple majority, a Financial Emergency has no periodic renewal requirement. Union directions may impose canons of financial propriety, reduce State and Union salaries, include Supreme Court and High Court judges, and require State Money Bills or other Article 207 Bills to be reserved.

India managed the 1991 balance-of-payments crisis through external assistance, adjustment and reform rather than Article 360. Later stress has been addressed through budgets, RBI measures, Finance Commission transfers, statutory fiscal frameworks and Article 293 borrowing conditions.

Analysis: Proclamation would publicly signal systemic loss of financial stability or credit and would centralise austerity across federal and judicial institutions. Governments therefore prefer calibrated measures that preserve ordinary accountability and market confidence.

Qualification: A collapse defeating normal coordination may still justify a constitutional backstop. Yet indefinite continuation after initial approval creates accountability concerns. Published reasons, periodic legislative review and protection of institutional independence would improve proportionality. Article 360 is best understood as an unused last-resort fire alarm, distinct from routine deficit control or State borrowing consent.